



Superior Court of California County of San Benito

Tentative Decisions for July 8, 2026

Courtroom #1: Judge J. Omar Rodriguez

FL-21-00240 DeFranco-Soto, Jeannie vs. Soto, Hugo

The Court takes judicial notice of a related case CR-25-00284 and the upcoming trial scheduled for July 13, 2026 that includes charges where Respondent is a listed victim. The Court on its own motion continues the hearings to August 5, 2026, at 8:30 a.m.

FL-25-00180 Reilly, Simon Anthony vs. Reilly, Jessica Nicole

Although Respondent is specially appearing and contesting service due to Petitioner's failure to file a proof of service indicating timely and proper service of the pleadings, including the petition and summons, Respondent cannot successfully seek an order for spousal support via a Request for Order without making a general appearance and waiving all objections to improper service. (Cal. Code Civ Proc. § 410.50, *In re Marriage of Obrecht*, (2016) 245 Cal. App. 4th 1, 7. Seeking affirmative financial relief on the merits, such as spousal support, recognizes the court's authority to proceed and constitutes a general appearance, which cures any defect in service. (see *In re Marriage of Obrecht*, 245 Cal. App. 4th at 7; *In re Marriage of Torres* (1998) 62 Cal. App. 4th 1367, 1380.)

Therefore, Respondent's February 27, 2026 Request for Order seeking Spousal Support is DENIED.

In light of the lack of service, the Court schedules an Order to Show Cause as to why sanctions, including a dismissal, should not be imposed for Petitioner's failure to timely serve Respondent. The hearing will take place on September 16, 2026 at 8:30 a.m.

Page 1 of 2

****Please contact Judicial Courtroom Assistant, Maria Pantoja, at
(831) 636-4057 x129 or mpantoja@sanbenitocourt.org with
any objections or concerns.**